

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

I signed up for an online shopping application and provided my name, phone number, delivery address and purchase information for placing orders. I later started receiving targeted calls and messages from unrelated financial and insurance companies that appeared to know details about my purchases. The shopping platform says that customer information may have been shared with marketing partners, but I do not remember giving clear consent for this use. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 15/Information Technology (IT) Act, 2000

Prepared by : NyaySahayak

Date : 29 August 2026

NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 72A

— Punishment for disclosure of information in breach of lawful contract

Potentially relevant if the platform/service provider obtained the personal information under a lawful contract and disclosed it without consent/in breach of contract with the intent or knowledge required by **section 72A** .

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 72A** is conditional, not automatic. A statutory-powers confidentiality provision or negligent-security provision is not the natural fit where the allegation is ordinary third-party marketing disclosure rather than access under statutory powers or a security failure.

✓ STRENGTHS & RIGHTS

- 1** The scenario expressly describes possible third-party marketing disclosure outside the remembered order-fulfilment purpose.

✗ RISKS & OBLIGATIONS

- 1** Do not infer negligent-security liability merely because personal data was shared.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Preserve the privacy notice, consent screen, terms in force at signup and communications from marketing partners.

TERMS, CONDITIONS & DISCLAIMER

Please read carefully before acting on any information in this report

1. Nature of Report

This report has been generated by an AI-powered legal information tool (NyaySahayak). It is intended solely for general educational and informational purposes and does not constitute legal advice, legal opinion, or a substitute for consultation with a qualified and licensed legal professional.

2. No Attorney-Client Relationship

Access to or use of this report does not create an attorney-client relationship between the user and NyaySahayak or any of its affiliates, partners, or associated legal professionals. The information presented herein should not be relied upon as legal advice for any specific matter.

3. Accuracy & Completeness

While every effort has been made to ensure that the information in this report is accurate and up-to-date as of the date of generation, the law is subject to change. NyaySahayak makes no representation or warranty, express or implied, regarding the accuracy, completeness, reliability, or suitability of the information contained herein.

4. Limitation of Liability

To the maximum extent permitted by applicable law, NyaySahayak and its directors, employees, agents, and licensors shall not be liable for any direct, indirect, incidental, special, consequential, or punitive damages arising out of or in connection with the use of this report or reliance on any information contained herein.

5. Jurisdiction

This report has been prepared with reference to Indian law, including the Digital Personal Data Protection Act, 2023, and related statutes. Laws and their interpretations vary across jurisdictions. Users outside India should seek local legal advice.

6. Confidentiality

This report is prepared for the named recipient only. Unauthorised disclosure, copying, distribution, or use of this document or the information it contains is strictly prohibited.

7. Verification Obligation

The user is strongly advised to independently verify all information contained in this report with a qualified lawyer before taking any legal action or making any legal decision.

IMPORTANT DISCLAIMER: THIS DOCUMENT IS AI-GENERATED AND IS PROVIDED FOR EDUCATIONAL AND INFORMATIONAL PURPOSES ONLY. IT DOES NOT CONSTITUTE LEGAL ADVICE. ALWAYS CONSULT A QUALIFIED LAWYER FOR ADVICE SPECIFIC TO YOUR SITUATION. NYAYSAHAYAK ACCEPTS NO LIABILITY FOR ANY ACTIONS TAKEN IN RELIANCE ON THIS REPORT.